



OSMANIA UNIVERSITY

LL.B. (3-YDC)

Semester II

Complete Exam Notes

For **LL.B. (General)** and **LL.B. (Honours)** students

Full syllabus · Simple English · Latest cases · Questions with answers

PAPERS IN THIS BOOK

Paper I	Law of Contract-II
Paper II	Family Law-II (Muslim Law and Other Personal Laws)
Paper III	Constitutional Law-II
Paper IV	Law of Crimes (BNS 2023)
Paper V	Human Rights Law
Paper VI	Law of Consumer Protection

INSIDE EVERY PAPER

- ◆ **Whole syllabus**, unit by unit, topic by topic
- ◆ Written in **simple, plain English** with tables
- ◆ **Sections and leading cases** for every topic
- ◆ **Latest cases** and recent amendments as examples
- ◆ **Points to remember** after every unit
- ◆ **Quick revision tables** for the last day
- ◆ **Short answers, essay guides and solved problems** in the exam pattern

About This Book

This book contains complete exam notes for **Semester II** of the **LL.B. (3-YDC)** course of **Osmania University**. All the papers of the semester are bound together in one book, with one set of page numbers.

Who Can Use This Book

Course	How to use it
LL.B. (Honours)	Follows the LL.B. (Hons) scheme of the semester – every paper, in the same order as the syllabus.
LL.B. (General)	The subjects that are common to the General course are covered by the same notes. Please match the units with your own syllabus copy; extra Honours topics can be skipped.

What Every Paper Contains

1. **Unit-wise notes** – every topic in the syllabus, in the same order as the syllabus.
2. **Simple, plain English** – short sentences, tables and easy rules.
3. **Sections and leading cases** – with the **latest cases and amendments** as examples.
4. **Points to remember** at the end of each unit.
5. **Quick revision tables** – sections, comparisons and recent cases for the last day.
6. **Questions and answers** – short answers, essay answer guides and solved problems in the exam pattern.

How to Use This Book for the Exam

1. Read each unit once fully. Mark the sections and the case names.
2. Learn the **Points to Remember** – they are ready-made short answers.
3. Practise the **essay answer guides** by writing each answer in your own words.
4. Solve the **problem questions** in the order: Facts – Issue – Law – Application – Conclusion.
5. On the day before the exam, read only the **Quick Revision** tables.

Please Note

This book is an **independent study aid**. It is not an official publication of Osmania University. The questions are **model questions** framed on the syllabus and the usual exam pattern. The law changes often – please check **recent amendments and recent cases** with the bare Act or an official source before quoting them. The book is for study purposes only and is not legal advice.

Saath Legal – Exam-Ready LLB Notes | www.saathlegal.com | 2026–27 Edition

Contents – Semester II

Each paper begins with its own detailed contents page.

Paper I – Law of Contract-II	5
Unit-I: Indemnity, Guarantee, Bailment and Pledge	9
Unit-II: Contract of Agency	25
Unit-III: Contract of Sale of Goods – Formation, Conditions and Warranties, Hire Purchase	35
Unit-IV: Property, Delivery, Rights of Unpaid Seller and Remedies	45
Unit-V: Partnership and Limited Liability Partnership	55
Quick Revision – Sections, Comparisons and Latest Cases	74
Previous Year Questions and Answers	77
Paper II – Family Law-II (Muslim Law and Other Personal Laws)	85
Unit-I: Sources, Schools, Marriage and Dower	89
Unit-II: Divorce and Maintenance	106
Unit-III: Parentage, Guardianship, Gifts and Wills	120
Unit-IV: Waqf, Mutawalli, Succession and Waqf Tribunals	132
Unit-V: Special Marriage Act, Indian Divorce Act, Domicile, Maintenance and Christian Succession	147
Quick Revision – Tables and Latest Cases	156
Previous Year Questions and Answers	159
Paper III – Constitutional Law-II	168
Unit-I: Legislature and Executive	171
Unit-II: Judiciary under the Constitution	187
Unit-III: Centre–State Relations	198
Unit-IV: State Liability, Freedom of Trade, Services and Public Service Commissions	209
Unit-V: Emergency and Amendment of the Constitution	218
Quick Revision – Articles and Latest Cases	228
Previous Year Questions and Answers	231
Paper IV – Law of Crimes (BNS 2023)	240
Unit-I: Concept of Crime, Elements, Codification and Punishments	244
Unit-II: General Exceptions, Abetment, Conspiracy and Offences against Women and Children	257
Unit-III: Offences affecting Human Life and Human Body	274
Unit-IV: Offences against the State, Public Tranquillity, Public Servants and Public Justice	289
Unit-V: Offences relating to Religion, Property, Documents, Intimidation and Defamation	304
Quick Revision – IPC vs BNS and Latest Cases	319
Previous Year Questions and Answers	331
Paper V – Human Rights Law	346
Unit-I: Meaning, Evolution and Classification of Human Rights	349

Unit-II: The UN Charter, UDHR and the International Covenants	359
Unit-III: Regional Conventions on Human Rights	370
Unit-IV: International Conventions and World Conferences on Human Rights	379
Unit-V: Human Rights Protection in India	394
Quick Revision – Dates, Comparisons and Latest Developments	406
Previous Year Questions and Answers	410

Paper VI – Law of Consumer Protection 425

Unit-I: Consumer Movement and Evolution of Consumer Protection Law	428
Unit-II: UN Guidelines, the Constitution and Consumer Protection under Various Statutes	439
Unit-III: The Consumer Protection Act – Objectives, Rights, Definitions and Services	455
Unit-IV: Consumer Protection Mechanism – Commissions and Councils	469
Unit-V: Remedies, Procedure, Appeals and Offences	480
Quick Revision – Sections, Comparisons and Latest Cases	491
Previous Year Questions and Answers	496

PAPER IV

Law of Crimes (BNS 2023)

OSMANIA UNIVERSITY

LL.B. (3-YDC)

SEMESTER II

IN THIS PAPER

- ◆ Unit-I: Concept of Crime, Elements, Codification and Punishments
- ◆ Unit-II: General Exceptions, Abetment, Conspiracy and Offences against Women and Children
- ◆ Unit-III: Offences affecting Human Life and Human Body
- ◆ Unit-IV: Offences against the State, Public Tranquillity, Public Servants and Public Justice
- ◆ Unit-V: Offences relating to Religion, Property, Documents, Intimidation and Defamation
- ◆ Quick Revision – IPC vs BNS and Latest Cases
- ◆ Previous Year Questions and Answers

Contents – Law of Crimes (Bharatiya Nyaya Sanhita, 2023) – Semester II – Exam Notes

Unit-I: Concept of Crime, Elements, Codification and Punishments	244
Concept of Crime – Meaning of Crime	244
Distinction between Crime and Tort	245
Stages of Crime	245
Intention, Preparation, Attempt and Commission – Summary	248
Elements of Crime – Actus Reus and Mens Rea	248
Codification of Law of Crimes in India – IPC, 1860	250
Application of the Bharatiya Nyaya Sanhita, 2023 (Sections 1-3)	251
Punishments (Sections 4-13 of BNS)	254
Unit-II: General Exceptions, Abetment, Conspiracy and Offences against Women and Children	257
General Explanations	257
General Exceptions under BNS, 2023	257
Abetment	264
Criminal Conspiracy	266
Offences against Women and Child (Sections 63-99 of BNS)	267
Sexual Offences	267
Assault and Criminal Force against Women	270
Offences relating to Marriage	271
Kidnapping and Abduction	272
Causing Miscarriage	272
Offences against Child (Sections 88-99 of BNS)	273
Unit-III: Offences affecting Human Life and Human Body	274
Offences affecting Human Life (Sections 100-113 of BNS)	274
Culpable Homicide and Murder	274
Causing Death by Negligence – Section 106	278
Attempt to Murder and Attempt to Culpable Homicide	279
Organised Crime – Section 111	280
Petty Organised Crime – Section 112	281
Terrorist Act – Section 113	281
Offences affecting the Human Body (Sections 114-144 of BNS)	282
Hurt and Grievous Hurt	282

Wrongful Restraint and Wrongful Confinement	284
Criminal Force and Assault	285
Kidnapping and Abduction	286
Unit-IV: Offences against the State, Public Tranquillity, Public Servants and Public Justice	289
Offences against the State	289
Offences Relating to Army, Navy and Air Force	291
Offences Relating to Election	292
Offences Relating to Coin, Currency Notes, Bank Notes and Government Stamps	293
Offences against Public Tranquillity	294
Offences by or Relating to Public Servants	297
Contempt of the Lawful Authority of Public Servants	298
False Evidence and Offences against Public Justice	299
Offences affecting Public Health, Safety, Convenience, Decency and Morals	300
Unit-V: Offences relating to Religion, Property, Documents, Intimidation and Defamation	304
Offences relating to Religion	304
Offences against Property – Introduction	304
Theft	305
Snatching – Section 304 (New)	306
Extortion	307
Robbery and Dacoity	307
Cheating	309
Mischief	310
Criminal Trespass	311
Criminal Misappropriation of Property and Criminal Breach of Trust	312
Receiving Stolen Property	313
Offences Relating to Documents and Property Marks	314
Criminal Intimidation, Insult, Annoyance and Defamation	316
Quick Revision – IPC vs BNS and Latest Cases	319
Comparative Study – IPC, 1860 and BNS, 2023 at a Glance	319
Important Distinctions at a Glance	326
Latest Cases at a Glance	329
Previous Year Questions and Answers	331
How to Write Answers in the Exam	331

Short Answer Questions (4 Marks)	331
Essay Questions (10 Marks) – Answer Guides	337
Problem Questions (10 Marks) with Answers	341

SAATH LEGAL
www.saathlegal.com

Unit-I: Concept of Crime, Elements, Codification and Punishments

Concept of Crime – Meaning of Crime

1. Meaning

A **crime** is an **act or omission** that is **prohibited by law** and is **punishable by the State**, because it is considered **harmful to society as a whole**, not merely to the individual victim.

Definitions:

- **Blackstone:** "A crime is an act committed or omitted in **violation of a public law** forbidding or commanding it."
- **Kenny:** "Crimes are wrongs whose sanction is **punitive** and is **in no way remissible** by any private person, but is remissible by the **Crown** alone, if remissible at all."
- **Austin:** "A wrong which is pursued at the discretion of the injured party and his representatives is a **civil injury**; a wrong which is pursued by the **sovereign** or his subordinates is a **crime**."
- **BNS, 2023, S. 2(24):** "**Offence**" means a thing made **punishable** by the Sanhita (and, in certain chapters, under any other law).

2. Features of a Crime

1. **Public wrong** – it affects **society**, so the **State** prosecutes (e.g., *State v X*);
2. **Prohibited by law** – "**nullum crimen sine lege**" – no crime without a law; "**nulla poena sine lege**" – no punishment without a law (**Art. 20(1)** of the Constitution);
3. **Punishment** – the sanction is **punishment** (imprisonment, fine, death, community service);
4. **Cannot generally be compromised** by the victim, except **compoundable** offences (BNS S. 359);
5. **Mens rea** – generally requires a **guilty mind**.

3. Changing Nature of Crime

What a crime depends on the **values** of society at a given time:

- **Decriminalised:** **adultery** (*Joseph Shine v UOI*, 2018); **consensual homosexual acts** between adults (*Navtej Singh Johar v UOI*, 2018); **attempt to suicide** (no longer a general offence in the BNS; the Mental Healthcare Act, 2017, S. 115 presumes severe stress);
- **Newly criminalised:** **mob lynching** (BNS S. 103(2)); **organised crime** (S. 111); **terrorist act** (S. 113); **snatching** (S. 304); sexual intercourse by **deceitful means** (S. 69); **triple talaq** (2019 Act); **cyber offences** (IT Act); **paper leaks** (Public Examinations Act, 2024).

Latest example: In 2024, the **Bharatiya Nyaya Sanhita** replaced the **Indian Penal Code, 1860**, decriminalising some acts and making new crimes of others, reflecting changes in society and technology.

Distinction between Crime and Tort

Point	Crime	Tort
Nature	Public wrong – against society	Private wrong – against an individual
Parties	State prosecutes the accused	Injured person sues the wrongdoer
Object	Punishment – deterrence, reformation	Compensation to the victim
Law	Codified – BNS, 2023 and special laws	Mostly uncodified (judge-made)
Mens rea	Generally essential	Not always necessary (e.g., strict liability, negligence)
Compromise	Only compoundable offences can be compromised	Can always be settled
Standard of proof	Beyond reasonable doubt	Balance of probabilities
Court	Criminal court (Magistrate, Sessions)	Civil court
Death of wrongdoer	Prosecution abates	Claim may continue against his estate
Example	Murder, theft	Nuisance, negligence

Overlap: Some acts are **both** crimes and torts – e.g., **assault, defamation, negligence causing death, public nuisance, trespass**. The victim can sue for **damages** and the State can **prosecute**. Under **BNSS S. 395** (old CrPC S. 357), a criminal court can order the accused to pay **compensation** to the victim, and **S. 396** provides for the **Victim Compensation Scheme**.

Latest example: A drunk driver who kills a pedestrian is prosecuted under **BNS S. 106** (causing death by negligence) or **S. 105** (culpable homicide), and the victim's family can also claim compensation before the **Motor Accident Claims Tribunal**.

Stages of Crime

1. The Four Stages

Every intentional crime passes through **four stages**:

Stage	Meaning	Punishable?
1. Intention (mens rea)	The mental decision to commit the crime	Not punishable – "the thought of man is not triable"
2. Preparation	Arranging the means needed to commit the crime	Generally not punishable (exceptions below)
3. Attempt	A direct movement towards the commission, after preparation	Punishable

Stage	Meaning	Punishable?
4. Commission (accomplishment)	The crime is completed	Punishable

2. Intention

Intention is the **desire** to bring about a particular result. It is not punishable because:

1. It is difficult to **prove** what is in a person's mind;
2. A person may **change his mind**;
3. Law punishes only **acts**, not thoughts.

Exception: Criminal conspiracy (S. 61) – an **agreement** between two or more persons to commit an offence is itself punishable, even if nothing more is done (for serious offences).

3. Preparation

Preparation means **devising or arranging the means** necessary for committing the offence – e.g., buying a gun, collecting tools for house-breaking.

General rule: Preparation is **not punishable** because:

1. It is difficult to prove that the preparation was for that particular crime;
2. The person may **give up** the plan (locus poenitentiae – the chance to repent).

Exceptions – preparation punishable:

1. **Preparation to wage war** against the Government of India (**BNS S. 149**, old IPC S. 122 – collecting arms);
2. **Preparation to commit depredation** on territories of a power at peace with India (**S. 154**, old S. 126);
3. **Preparation for counterfeiting** coins, currency notes and stamps (making or possessing instruments – **Ss. 180–181**, old Ss. 233–235, 489D);
4. **Possessing** counterfeit coins or notes with intent to use (S. 180, old S. 489C);
5. **Making preparation to commit dacoity** (**S. 310(4)**, old S. 399);
6. **Assembling for the purpose of committing dacoity** (S. 310(5), old S. 402);
7. **Possession of forged documents** knowing them to be forged with intent to use as genuine (**S. 339**, old S. 474).

Malkiat Singh v State of Punjab (1970) – a truck loaded with **paddy** was stopped at Samalkha, **14 miles** before the Punjab–Delhi border. The accused were charged with attempting to **export** paddy without a permit. Held: this was only **preparation**, not an attempt – the accused could still have **changed their mind** before reaching the border. Acquitted.

4. Attempt

BNS S. 62 (old IPC S. 511): Whoever **attempts** to commit an offence punishable with imprisonment for life or other imprisonment, or causes such offence to be committed, and in such attempt does **any act towards the commission** of the offence, shall, where no express provision is made for the punishment of such attempt, be punished with imprisonment of any description provided for the offence, for a term which may extend to **one-half** of the **imprisonment for life** or, as the case may be, **one-half** of the **longest term** provided for that offence, or with fine, or both.

Specific attempt offences: attempt to murder (S. 109, old S. 307), attempt to commit culpable homicide (S. 110, old S. 308), attempt to commit robbery (S. 309(5), old S. 393), attempt to wage war (S. 147).

Tests to distinguish preparation from attempt:

Test	Meaning	Case
Proximity test	The act must be sufficiently proximate (close) to the intended crime	<i>R v Eagleton (1855)</i>
Locus poenitentiae test	If the accused still has time and opportunity to change his mind and withdraw, it is preparation	<i>Malkiat Singh (1970)</i>
Equivocality test	The act must unequivocally show the intention to commit the crime	<i>Davey v Lee (1968)</i>
Impossibility test	An attempt to do the impossible can still be punishable	<i>Asgarali Pradhan v Emperor (1933)</i> ; Illustration to S. 62 (pickpocket and empty pocket)
Social danger test	Considers the seriousness of the crime and the danger	–

Leading Indian cases:

- **Abhayanand Mishra v State of Bihar (1961)** – the accused applied to **Patna University** to sit for the **M.A. exam** as a private candidate, falsely claiming to be a graduate and a teacher; he got the admit card before the fraud was discovered. Held: **attempt to cheat** – the act was done towards the commission of the offence after preparation was over. "Attempt begins where preparation ends."
- **State of Maharashtra v Mohd. Yakub (1980)** – the accused brought **silver** ingots near the sea coast at night and were about to load them into a boat to **smuggle** them out of India. Held: **attempt to export** – they had done everything except actually loading.
- **Om Prakash v State of Punjab (1961)** – a husband deliberately **starved** his wife over a long period; she escaped to hospital. Held: **attempt to murder** (S. 307) – an attempt need not be the last act; a **series of acts** can constitute an attempt.
- **Aman Kumar v State of Haryana (2004)** – distinguished **attempt to rape** from indecent assault; there must be a determination to have sexual intercourse at all events.

Illustration (S. 62): A makes an attempt to **pick the pocket** of Z by thrusting his hand into Z's pocket. A **fails** because Z had **nothing** in his pocket. A is guilty of **attempt to commit theft** (impossibility is no defence).

5. Commission

When the act is **completed** and all the ingredients of the offence are present, the **offence is committed** and punishable as such.

Intention, Preparation, Attempt and Commission – Summary

Stage	Example (murder)	Liability
Intention	A decides to kill B	None
Preparation	A buys poison	None (unless a special offence)
Attempt	A mixes poison in B's food and serves it; B does not eat it	Attempt to murder – S. 109
Commission	B eats it and dies	Murder – S. 103

Elements of Crime – Actus Reus and Mens Rea

1. The Fundamental Principle

"**Actus non facit reum nisi mens sit rea**" – an **act does not make a person guilty** unless the **mind is also guilty**.

So a crime has **two essential elements**:

1. **Actus reus** – the **physical** element – a guilty **act** or **omission**;
2. **Mens rea** – the **mental** element – a guilty **mind**.

Some writers add:

3. **Human being** – the wrongdoer must be a human being (or a company, through its officers);
4. **Injury** – to another human being or society.

2. Actus Reus

Actus reus means the **physical act** (or omission) prohibited by law, together with its **circumstances** and **consequences**.

1. **Act** – a voluntary bodily movement (S. 2(1) BNS – "**act**" includes a **series of acts**);
2. **Omission** – a failure to act where there is a **legal duty** to act (e.g., a parent not feeding a child; a public servant not performing a duty – S. 2(25) "omission", and S. 2(15) "**illegal**" includes omission);
3. **Circumstances** – e.g., in theft, the property must belong to another;
4. **Consequences** – e.g., in murder, the **death** of a person;
5. **Causation** – the act must **cause** the result.

Example: In **murder**, the actus reus is **causing the death** of a human being; in **theft**, it is **moving** movable property out of the possession of another without consent.

3. Mens Rea

Mens rea means the **mental state** required by the definition of an offence. Under the BNS, it is expressed by words such as:

Word	Meaning	BNS definition
Intentionally	Desiring the result	–
Knowingly	Aware that the result is practically certain	–
Voluntarily	Causing an effect intentionally, or with knowledge, or having reason to believe that it is likely	S. 2(33)
Dishonestly	With the intention of causing wrongful gain to one person or wrongful loss to another	S. 2(7)
Fraudulently	With intent to defraud	S. 2(9)
Reason to believe	Sufficient cause to believe a thing	S. 2(29)
Negligently / Rashly	Without due care / with indifference to known risk	S. 106
Maliciously, corruptly, wantonly	Various guilty states of mind	–

Kinds of mens rea:

1. **Intention** – the highest degree;
2. **Knowledge**;
3. **Recklessness (rashness)** – conscious risk-taking;
4. **Negligence** – failure to take due care.

Motive vs intention: **Motive** is the **reason** behind the act (e.g., revenge, greed); **intention** is the **purpose** to bring about a result. Motive is generally **irrelevant** to guilt (a good motive is no defence), but it is relevant as **evidence**, especially in cases of **circumstantial evidence**.

4. Exceptions to Mens Rea – Strict Liability

In some offences – usually **public welfare** or **regulatory** offences – the law imposes liability **without proof of mens rea (strict liability)**. Examples: food adulteration, offences under the **Customs Act, Motor Vehicles Act, Essential Commodities Act**, weights and measures, environmental laws.

R v Prince (1875) – the accused took a girl under 16 out of her father's possession, believing on reasonable grounds that she was 18. Held: **guilty** – the statute imposed strict liability as to age.

State of Maharashtra v M.H. George (1965) – a German passenger on a flight from Zurich to Manila carried **gold** during a stopover in Bombay, without knowing of an RBI notification requiring a declaration. Held: **guilty** under the **Foreign Exchange Regulation Act** – mens rea (knowledge of the notification) was **not** required; strict liability applied.

Nathulal v State of M.P. (1966) – a dealer who stored foodgrains without a licence, honestly believing that his application for the licence had been granted, was **not guilty** under the **Essential Commodities Act** – mens rea is presumed to be required unless the statute excludes it **expressly or by necessary implication**.

Sweet v Parsley (1969, House of Lords) – there is a **presumption** that mens rea is required for every offence unless Parliament clearly indicates otherwise.

5. Mens Rea under the BNS

1. The BNS does not use the term "mens rea", but each definition includes the required **mental element** (e.g., "dishonestly" in theft);
2. **Chapter III (General Exceptions)** gives defences that negate mens rea (mistake of fact, accident, infancy, insanity, intoxication);
3. **S. 3(5)** (old S. 34) and **S. 190** (old S. 149) – **joint liability** based on **common intention** and **common object**.

Codification of Law of Crimes in India – IPC, 1860

1. Before the IPC

1. **Hindu period** – criminal law based on **Dharmashastras** (Manu, Yajnavalkya);
2. **Muslim period** – **Muslim criminal law** (Hudd, Qisas, Tazir);
3. **British period** – the Company's courts applied **Muslim criminal law** in the mofussil, modified by **Regulations** (Cornwallis, 1790); the **Supreme Courts** in the Presidency towns applied **English criminal law** – there was **no uniformity**.

2. Making of the IPC

1. The **Charter Act, 1833** created the **First Law Commission (1834)** under **Lord Macaulay**;
2. Macaulay drafted the **Indian Penal Code** and submitted it in **1837**;
3. It was revised by **Sir Barnes Peacock** and others;
4. Enacted as **Act XLV of 1860**, it came into force on **1 January 1862**;
5. It had **23 chapters** and **511 sections**;
6. Sources – English criminal law, the **French Penal Code** and **Livingston's Louisiana Code**.

3. Features of the IPC

1. A **comprehensive** code of substantive criminal law;
2. Clear **definitions** with **illustrations** and **explanations**;
3. **General exceptions** (Ch. IV) applicable to all offences;
4. **Uniform** law for all persons, regardless of religion or race;
5. Lasted for over **160 years** with many amendments (e.g., **dowry death 1986**, **cruelty 1983**, **sexual offences 2013 and 2018**).

Criticism: colonial in origin (e.g., **sedition** S. 124A, used against freedom fighters); some outdated provisions (adultery, S. 377, attempt to suicide); language and illustrations were old.

Application of the Bharatiya Nyaya Sanhita, 2023 (Sections 1–3)

1. Background

The **Bharatiya Nyaya Sanhita, 2023 (BNS)** was passed by Parliament in **December 2023** and came into force on **1 July 2024**, **repealing the IPC (S. 358)**. Along with it, the **Bharatiya Nagarik Suraksha Sanhita (BNSS)** replaced the CrPC, and the **Bharatiya Sakshya Adhiniyam (BSA)** replaced the Indian Evidence Act.

Stated aims: to **decolonise** criminal law, to focus on **justice** ("nyaya") rather than punishment ("dand"), to give priority to **offences against women and children** and **national security**, and to deal with **new crimes** (organised crime, terrorism, mob lynching).

2. Structure of the BNS

Feature	IPC, 1860	BNS, 2023
Sections	511	358
Chapters	23	20
First chapter on offences	Offences against the State (Ch. VI)	Offences against Woman and Child (Ch. V)
Attempt	S. 511 (at the end)	S. 62 (with abetment and conspiracy, Ch. IV)

3. Section 1 – Short Title, Commencement and Application

1. **S. 1(1)** – the Act may be called the **Bharatiya Nyaya Sanhita, 2023**;
2. **S. 1(2)** – it comes into force on the date notified by the Central Government (**1 July 2024**);
3. **S. 1(3) – Intra-territorial application:** every person shall be liable to punishment under the Sanhita for every act or omission contrary to its provisions, of which he is guilty **within India** (old S. 2 IPC);
4. **S. 1(4) – Offences committed outside India:** any person liable by any law in India to be tried for an offence committed **beyond India** shall be dealt with according to the Sanhita as if the act had been committed within India (old S. 3);
5. **S. 1(5) – Extra-territorial application:** the Sanhita applies also to any offence committed by:
 - (a) any **citizen of India** in any place **without and beyond India**;
 - (b) any person on any **ship or aircraft registered in India**, wherever it may be;
 - (c) any person in any place without and beyond India committing an offence **targeting a computer resource located in India** (old S. 4);
6. **S. 1(6)** – nothing in the Sanhita affects any **special or local law**, or the Army, Navy and Air Force Acts and similar laws (old S. 5).

4. Territorial and Extra-territorial Application

A. Territorial (intra-territorial) jurisdiction – S. 1(3):

- Applies to **every person** – citizen or foreigner – for offences committed **in India**, including India's **territorial waters** (12 nautical miles) and airspace;
- **Foreigners** cannot plead **ignorance** of Indian law;
- **Mobarik Ali Ahmed v State of Bombay (1957)** – a **Pakistani** national, while in **Karachi**, made false representations through letters, telegrams and phone calls to a complainant in **Bombay**, who sent money. Held: he was liable under the **IPC** for **cheating** in Bombay, because the offence was committed in Bombay (where the deception operated and the money was delivered), even though he was physically absent;
- **Exceptions (immunity):** the **President** and **Governors** (Art. 361), **foreign sovereigns, ambassadors and diplomats** (Diplomatic Relations (Vienna Convention) Act, 1972), **alien enemies** (in military matters), **foreign armies** and **warships** (by international law).

B. Extra-territorial jurisdiction – S. 1(5):

- **Citizens** of India are liable for offences committed **anywhere** in the world;
- **Ships and aircraft** registered in India – **any person** (citizen or foreigner) on board;
- **Cyber offences** – any person anywhere who commits an offence **targeting a computer resource in India** (e.g., a hacker abroad attacking an Indian bank's servers);
- **Procedure – BNSS S. 208** (old CrPC S. 188): an offence committed outside India by a citizen may be tried in India, but **prior sanction** of the **Central Government** is needed;
- **Latest – Enrica Lexie case (Italian marines, 2012–2021)** – Italian marines on an Italian ship shot two Indian fishermen off Kerala; India claimed jurisdiction; the **international arbitral tribunal (2020)** held that the marines had **functional immunity**, and the Supreme Court (2021) closed the Indian proceedings after Italy paid ₹10 crore compensation.

5. Section 2 – Definitions

S. 2 contains **definitions** of important terms (earlier scattered in Ss. 6–52A IPC). Important definitions:

Clause	Term	Meaning (simplified)
2(1)	Act	Includes a series of acts
2(3)	Child	Any person below 18 years (new)
2(7)	Dishonestly	Intention of causing wrongful gain or wrongful loss
2(8)	Document	Includes electronic and digital records
2(9)	Fraudulently	With intent to defraud
2(10)	Gender	"He" and derivatives used for any person, male, female or transgender
2(11)	Good faith	Nothing is done in good faith which is done without due care and attention

Clause	Term	Meaning (simplified)
2(14)	Injury	Any harm illegally caused to body, mind, reputation or property
2(16)	Judge	–
2(21)	Movable property	Property of every description except land and things attached to it
2(24)	Offence	A thing made punishable by the Sanhita
2(28)	Public servant	Includes government employees, judges, police, officers of courts, local authority employees, etc.
2(33)	Voluntarily	Intentionally, knowingly or having reason to believe
2(35)	Woman	A female human being of any age
2(36)– (37)	Wrongful gain / wrongful loss	Gain or loss of property by unlawful means

New concepts: "child" (below 18) used throughout; "transgender" included in "gender"; "document" includes electronic records; "movable property" and "counterfeit" updated.

6. Section 3 – General Explanations

S. 3 contains general rules of interpretation (earlier Ss. 6–33 IPC), including:

- Definitions to be understood subject to **general exceptions** (S. 3(1));
- Sense of expressions used in the Sanhita;
- **S. 3(5) – Acts done by several persons in furtherance of common intention** (old S. 34): "When a criminal act is done by **several persons** in furtherance of the **common intention** of all, each of such persons is **liable** for that act in the **same manner** as if it were done by him alone."

Common intention – S. 3(5):

1. A **criminal act** done by **several persons**;
2. A **common intention** of all – a **prior meeting of minds** (it may develop on the spot);
3. The act done in **furtherance** of the common intention;
4. **Participation** – each accused must **participate** in some way (presence is enough in some cases).

Cases:

- **Barendra Kumar Ghosh v King Emperor (1925, Privy Council)** – in a post office robbery, the accused stood **outside** while others shot the postmaster inside. Held: liable for murder under S. 34 – "**they also serve who only stand and wait**";
- **Mahbub Shah v Emperor (1945, Privy Council)** – common intention requires a **pre-arranged plan**; similar intention is not common intention;
- **Pandurang v State of Hyderabad (1955)** – the Supreme Court (in a case from **Hyderabad**) held that common intention needs a **prior concert** or meeting of minds; where several persons attack a victim independently, each is liable only for his **own** act.

Punishments (Sections 4–13 of BNS)

1. Kinds of Punishment – Section 4

The punishments to which offenders are liable under the Sanhita are:

1. (a) Death;
2. (b) Imprisonment for life;
3. (c) Imprisonment – rigorous (with hard labour) or simple;
4. (d) Forfeiture of property;
5. (e) Fine;
6. (f) Community service – new in the BNS.

Removed: "Transportation" (removed from the IPC in 1955) and "penal servitude".

2. Death Penalty

1. Imposed for offences such as murder (S. 103), mob lynching (S. 103(2)), waging war (S. 147), rape causing death or vegetative state (S. 66), gang rape of a girl under 18 (S. 70(2)), rape of a girl under 12 (S. 65(2)), repeat rape offenders (S. 71), organised crime resulting in death (S. 111), terrorist act resulting in death (S. 113), kidnapping for ransom (S. 140(2)), dacoity with murder (S. 310(3)), and fabricating false evidence leading to an innocent person's execution (S. 230);
2. **Rarest of rare doctrine** – *Bachan Singh v State of Punjab (1980)* – death is the exception; life imprisonment is the rule; death only when the alternative option is "**unquestionably foreclosed**";
3. *Machhi Singh v State of Punjab (1983)* – categories of rarest of rare (manner of commission, motive, anti-social nature, magnitude, personality of victim);
4. *Mithu v State of Punjab (1983)* – mandatory death sentence (old S. 303) was **struck down**;
5. **Latest** – *Manoj v State of M.P. (2022)* – courts must collect **mitigating** information (psychological evaluation, jail conduct, background) before imposing death; in *In re Framing Guidelines Regarding Potential Mitigating Circumstances (2022–23)*, the issue of a separate sentencing hearing was referred to a Constitution Bench.

3. Imprisonment for Life

1. Means imprisonment for the **remainder of the convict's natural life** (*Gopal Vinayak Godse v State of Maharashtra, 1961*; *Union of India v V. Sriharan, 2015*);
2. **S. 6 BNS** – in calculating **fractions** of terms of punishment, imprisonment for life is reckoned as equivalent to **20 years** (old S. 57);
3. The Government can **remit** or **commute** it (BNSS Ss. 473–475; Arts. 72/161). For some offences (e.g., gang rape – S. 70), the BNS expressly says life imprisonment means imprisonment "**for the remainder of that person's natural life**";
4. **S. 5 BNS – Commutation of sentence** (old Ss. 54–55): the appropriate Government may commute a sentence of **death** to any other punishment, and **life imprisonment** to imprisonment for a term not exceeding **14 years, without the consent** of the offender. The BNS defines "**appropriate Government**" for this purpose.

4. Imprisonment – Rigorous and Simple

1. **Rigorous imprisonment** – with **hard labour**;
2. **Simple imprisonment** – without hard labour (e.g., for defamation, public nuisance);
3. **S. 7** – in some cases, the court may direct that the imprisonment be **wholly or partly rigorous** and the rest simple (old S. 60).

5. Solitary Confinement – Sections 11–12

1. **S. 11** (old S. 73) – the court may order **solitary confinement** for a portion of rigorous imprisonment, not exceeding **three months** in total:
 - Not exceeding **one month** if the imprisonment does not exceed **6 months**;
 - Not exceeding **two months** if it exceeds 6 months but not **1 year**;
 - Not exceeding **three months** if it exceeds **1 year**;
2. **S. 12** (old S. 74) – solitary confinement shall not exceed **14 days at a time**, with intervals; and not more than **7 days in any month** when the sentence exceeds 3 months;
3. **Sunil Batra v Delhi Administration (1978)** – solitary confinement is a **separate punishment** and cannot be imposed by jail authorities without a court order; it must be used sparingly.

6. Fine – Section 8

1. **S. 8(1)** – where **no limit** is fixed, the amount of fine is **unlimited** but **not excessive**;
2. **S. 8(2)–(6)** – **imprisonment in default** of payment of fine (old Ss. 64–69):
 - Must not exceed **one-fourth** of the maximum term of imprisonment for the offence;
 - For offences punishable with **fine only** – default imprisonment up to **2 months** (fine up to ₹5,000), **4 months** (up to ₹10,000), and **1 year** (more than ₹10,000) (BNS revised the amounts);
 - Imprisonment in default terminates on payment of the fine;
3. **S. 8(7)** – the fine can be **recovered** within **6 years** (or during the term of imprisonment, if longer); the death of the offender does not discharge the property from liability.

BNS has increased fines in many offences (e.g., minimum fines in several sections) to keep pace with inflation.

7. Community Service – A New Punishment

Meaning: BNSS S. 23, Explanation: "**community service**" shall mean the work which the court may order a convict to perform as a form of punishment that **benefits the community**, for which he shall not be entitled to any remuneration.

Offences punishable with community service (six):

1. **S. 202** – public servant **unlawfully engaging in trade**;
2. **S. 209** – **non-appearance** in response to a proclamation under BNSS S. 84;
3. **S. 226** – **attempt to commit suicide** to compel or restrain the exercise of lawful power;

4. S. 303(2) – **theft** of property worth **less than ₹5,000**, by a **first-time** offender, where the property is **returned or restored**;
5. S. 355 – **misconduct in public** by a **drunken** person;
6. S. 356(2) – **defamation**.

Purpose: reformatory – avoids sending petty first-time offenders to overcrowded jails.

Latest example: Since the BNS came into force, Magistrates in several cities have begun ordering first-time petty offenders (e.g., for drunken misconduct in public) to do **community service** such as cleaning public places or helping at hospitals, instead of short jail terms.

8. Forfeiture of Property

Under the BNS, forfeiture is provided for certain offences (e.g., S. 154–155 – property taken by depredation; S. 202 – property bought by a public servant unlawfully). The BNSS (S. 107) also provides for **attachment and forfeiture of proceeds of crime**.

9. Other Provisions

Section	Provision
S. 9 (old S. 71)	Limit of punishment for an offence made up of several offences – the offender shall not be punished with a more severe punishment than the court could award for any one of them, unless expressly provided
S. 10 (old S. 72)	Punishment of a person guilty of one of several offences , the judgment stating that it is doubtful of which – punished for the offence with the lowest punishment
S. 13 (old S. 75)	Enhanced punishment for certain offences after previous conviction (offences relating to coin, stamps, property – punishable with 3 years or more)

10. Theories of Punishment (for answer writing)

Theory	Idea
Deterrent	Punish to deter the offender and others (e.g., death for terrorism)
Retributive	"An eye for an eye" – punishment as just deserts
Preventive	Disable the offender (imprisonment, death)
Reformatory	Reform the offender (probation, community service, open jails)
Expiatory	Offender repents
Restorative	Repair harm to the victim and community (victim compensation)

The BNS reflects a **mix** – deterrence for serious crimes (organised crime, terrorism, crimes against women) and **reformation** for petty crimes (**community service**).

Quick Revision – IPC vs BNS and Latest Cases

Comparative Study – IPC, 1860 and BNS, 2023 at a Glance

The syllabus says that "a comparative study of IPC, 1860 and BNS, 2023 shall be made wherever necessary." Use this section to quote **both** section numbers in every answer. For example: "murder – **S. 101 BNS (old S. 300 IPC)**".

1. Overall Structure

Point	IPC, 1860	BNS, 2023
Drafted by	First Law Commission (Lord Macaulay)	Ministry of Home Affairs; Parliamentary Standing Committee examined it
Came into force	1 January 1862	1 July 2024
Sections	511	358
Chapters	23	20
Definitions	Scattered (Ss. 6–52A)	Collected in S. 2 (39 clauses)
Offences against women and children	Spread across chapters	One chapter (Chapter V) , placed first among offences
Attempt	S. 511 (last section)	S. 62
Community service	Not a punishment	New punishment (S. 4(f))
Sedition	S. 124A	Removed ; replaced by S. 152
Organised crime, terrorist act	Not in IPC (special Acts only)	Ss. 111, 112, 113
Mob lynching	No specific provision	S. 103(2)
Snatching	Treated as theft or robbery	S. 304 – separate offence
Unnatural offences (S. 377)	Present	Not included
Adultery (S. 497)	Struck down in 2018	Not included
Attempt to commit suicide (S. 309)	General offence	Not a general offence ; only attempt to compel a public servant (S. 226)
Thugs (Ss. 310–311)	Present	Removed as obsolete
Words "Queen", "British India", "Justice of the Peace"	Present	Removed

2. Section-wise Comparative Table

Subject	IPC	BNS
Title, extent, extra-territorial operation	1-5	1
Definitions	6-52A	2
General explanations; common intention	34-38	3 (common intention - S. 3(5))
Punishments	53	4
Commutation	54-55	5
Fractions of terms of punishment	57	6
Solitary confinement	73-74	11-12
Enhanced punishment for repeat offenders	75	13
Mistake of fact	76, 79	14, 17
Act of judge; act under court order	77-78	15-16
Accident	80	18
Necessity	81	19
Child under 7	82	20
Child 7-12 of immature understanding	83	21
Unsoundness of mind	84	22
Intoxication	85-86	23-24
Consent	87-92	25-30
Communication in good faith	93	31
Duress (threats)	94	32
Trifles	95	33
Private defence	96-106	34-44
Right of private defence of body extending to death	100	38
Right of private defence of property extending to death	103	41
Abetment	107-120	45-60
Criminal conspiracy	120A-120B	61
Attempt	511	62
Rape - definition	375	63

Previous Year Questions and Answers

How to Write Answers in the Exam

- **Part A (4 marks):** BNS section **and** old IPC section → definition in simple words → ingredients → one case → one change made by the BNS.
- **Part B (10 marks):** introduction → BNS section with IPC equivalent → definition → ingredients (explained one by one) → illustrations → exceptions → punishment → leading cases (old to latest) → **comparison with IPC** → criticism → conclusion.
- **Problems: FILAC** – Facts, Issue, Law (BNS section + IPC section + leading case), Application, Conclusion. Always state the **offence** and the **punishment**.
- From 2025 onwards, examiners expect **BNS** numbers. Writing "S. 101 BNS (old S. 300 IPC)" earns full marks under both systems.

Short Answer Questions (4 Marks)

1. Definition of Crime

There is no satisfactory definition. **Blackstone:** an act committed or omitted in violation of a **public law**. **Kenny:** wrongs whose sanction is **punitive** and **not remissible** by any private person. **Section 2(24) BNS** defines "**offence**" as a thing made punishable by the Sanhita. The essential features are a **public wrong**, **prosecution by the State** and **punishment**.

2. Actus Non Facit Reum Nisi Mens Sit Rea

"An act does not make a person guilty unless the mind is also guilty." Crime requires both **actus reus** (the guilty act) and **mens rea** (the guilty mind). The BNS uses words such as "intentionally", "knowingly", "dishonestly", "fraudulently" and "voluntarily" to express mens rea. **Exception:** strict liability offences such as those in *State of Maharashtra v M.H. George (1965)*.

3. Strict Liability

Offences where **mens rea is not required:** public welfare offences, food adulteration, customs, environmental offences and traffic offences. The aim is to **protect society** where proving intention is difficult. *State of Maharashtra v M.H. George (1965)* is the leading case.

4. Stages of Crime

The four stages are **intention → preparation → attempt → commission**. Intention and preparation are generally **not punishable**. Exceptions to the preparation rule are waging war (S. 148), dacoity (S. 310(4)) and counterfeiting. **Attempt** is punishable under **S. 62 BNS** (old S. 511 IPC) or under specific provisions such as S. 109 (attempt to murder).

5. Extra-territorial Jurisdiction (S. 1 BNS)

The BNS applies to offences committed:

- by an **Indian citizen** outside India;

- on any **ship or aircraft registered in India**;
- by any person outside India **targeting a computer resource** located in India.

The *Enrica Lexie* case (Italian marines) shows the problems of jurisdiction at sea.

6. Community Service (S. 4(f) BNS)

Community service is a **new punishment** introduced by the BNS. The Explanation to **S. 23 BNSS** defines it as work that a court may order a convict to perform as a punishment that **benefits the community**, for which no remuneration is paid. It applies to **six petty offences**: Ss. 202, 209, 226, 303(2), 355 and 356(2). It is **reformatory** and reduces the burden on jails.

7. Solitary Confinement (Ss. 11–12)

The court may order solitary confinement for part of a rigorous imprisonment term:

- not more than **3 months** in total;
- not more than **14 days at a time**, with intervals.

In *Sunil Batra v Delhi Administration* (1978), the Supreme Court held that solitary confinement cannot be imposed by jail authorities on undertrials or convicts awaiting death sentence without a court order.

8. Rarest of Rare Doctrine

In *Bachan Singh v State of Punjab* (1980), the Supreme Court upheld the **death penalty** but held that it should be given only in the "**rarest of rare**" cases, when life imprisonment is "**unquestionably foreclosed**". *Machhi Singh* (1983) laid down the categories. *Manoj v State of M.P.* (2022) requires a **mitigation investigation** before death is imposed.

9. Mistake of Fact (Ss. 14 and 17)

An act done by a person who, by a **mistake of fact** and **in good faith**, believes himself **bound by law** (S. 14) or **justified by law** (S. 17) to do it is not an offence. **Mistake of law is no defence** – *ignorantia juris non excusat*. *R v Tolson* (1889) is the leading English case.

10. Accident (S. 18)

Nothing is an offence which is done by **accident or misfortune**, without criminal intention or knowledge, in doing a **lawful act** in a **lawful manner** by **lawful means** and with **proper care and caution**. **Illustration**: A is working with a hatchet; the head flies off and kills a man standing nearby. A commits no offence.

11. Necessity (S. 19)

An act done **without criminal intention** to cause harm, in good faith, to **prevent or avoid other harm** to person or property is not an offence, even if done knowing that it is likely to cause harm. **Illustration**: pulling down houses to stop a fire from spreading. *R v Dudley and Stephens* (1884) – necessity is **no defence to murder**.

12. Infancy (Ss. 20–21)

- **Under 7 years** – nothing is an offence (**doli incapax**; conclusive presumption).
- **7–12 years** – nothing is an offence if the child **has not attained sufficient maturity** of understanding to judge the nature and consequences of the act (a rebuttable presumption).

Children above 12 are dealt with under the **Juvenile Justice Act, 2015**.

13. Insanity (S. 22)

Nothing is an offence done by a person who, at the time of the act, by reason of **unsoundness of mind**, is **incapable of knowing the nature of the act**, or that it is **wrong or contrary to law**. The rule is based on the **McNaughten Rules (1843)**. Only **legal insanity**, not medical insanity, is a defence. The **burden** is on the accused, but only on a **preponderance of probabilities** (*Dahyabhai, 1964*).

14. Intoxication (Ss. 23–24)

- **Involuntary** intoxication (without knowledge or against will) is a **complete defence** if it makes the person incapable of knowing the nature of the act (S. 23).
- **Voluntary** intoxication is **no defence**; the person is presumed to have the **same knowledge** as if he were sober (S. 24).

Basdev v State of PEPSU (1956) is the leading case.

15. Consent as a Defence (Ss. 25–30)

Consent given by a person **above 18** to harm that is **not intended** to cause death or grievous hurt (S. 25) is a defence. So is consent to acts done in **good faith for the benefit** of the person (Ss. 26–27), such as surgery. Consent is **invalid** if given under **fear or misconception**, by a person of **unsound mind**, by an **intoxicated** person or by a **child under 12** (S. 28). See *Samira Kohli (2008)* and *Jacob Mathew (2005)*.

16. Right of Private Defence – Limits (S. 37)

There is **no right of private defence**:

- against acts of public servants acting in good faith;
- where there is **time to have recourse** to public authorities;
- beyond causing **more harm than necessary**.

The right is **defensive, not punitive** (*Darshan Singh, 2010*).

17. When Private Defence of Body Extends to Causing Death (S. 38)

1. An assault causing reasonable apprehension of **death**.
2. An assault causing reasonable apprehension of **grievous hurt**.
3. An assault with intention of **rape**.
4. An assault with intention of gratifying **unnatural lust**.
5. An assault with intention of **kidnapping or abducting**.
6. An assault with intention of **wrongful confinement** where the victim apprehends he cannot get help from public authorities.
7. An **acid attack** or attempt, causing apprehension of grievous hurt.

18. Abetment (S. 45)

A person abets the doing of a thing who:

1. **instigates** any person to do it;
2. engages in a **conspiracy** for doing it, if an act or illegal omission takes place; or
3. intentionally **aids** its doing by any act or illegal omission.

The offence abetted **need not be committed** (S. 46, Explanation 2). Abetment of suicide is punishable under **S. 108**; see *Mahendra Awase (2025)*.

19. Criminal Conspiracy (S. 61)

An **agreement** between **two or more persons** to do an **illegal act** or a **legal act by illegal means**. For conspiracy to commit a serious offence, the **agreement itself** is the offence; for other agreements, some **overt act** is needed. See *Kehar Singh (1988)* and *Navjot Sandhu (2005)*.

20. Section 69 – Sexual Intercourse by Deceitful Means

This is a **new offence**. Sexual intercourse by **deceitful means** or a **false promise to marry** without intending to fulfil it, where it does **not amount to rape**, is punishable with up to **10 years** and fine. "Deceitful means" includes false promises of **employment or promotion** and **marrying after suppressing identity**. Earlier, such cases were tried as rape under S. 375 IPC, and courts had distinguished a **false promise** from a **breach of promise** (*Pramod Suryabhan Pawar, 2019*).

21. Dowry Death (S. 80)

A woman's death by **burns or bodily injury** or otherwise than under normal circumstances, within **seven years of marriage**, where she was subjected to **cruelty or harassment for dowry** "soon before her death". Punishment is a minimum of **7 years** and up to **life**. **S. 118 BSA** (old S. 113B Evidence Act) raises a **presumption** against the accused.

22. Mob Lynching (S. 103(2))

When a group of **five or more persons** acting in concert commits murder on the ground of **race, caste, community, sex, place of birth, language, personal belief or any other similar ground**, each member is punishable with **death or life imprisonment** and fine. This follows *Tehseen Poonawalla (2018)*. **S. 117(4)** covers **grievous hurt by a mob**.

23. Hit-and-Run (S. 106(2))

Causing death by **rash and negligent driving** and **escaping without reporting** the incident to a police officer or Magistrate soon after is punishable with up to **10 years** and fine. Simple death by negligence (S. 106(1)) carries up to **5 years**; for a **registered medical practitioner**, up to **2 years**. S. 106(2) is **on hold** after the **truckers' strike of January 2024**.

24. Organised Crime (S. 111)

Continuing unlawful activity by a group or **syndicate**, such as kidnapping, robbery, vehicle theft, extortion, land grabbing, contract killing, economic offences, **cyber-crimes**, trafficking of persons, drugs or weapons, using **violence, threats, intimidation or corruption** for financial or material benefit. If death results, the punishment is **death or life** and a fine of at least **₹10 lakh**. It was borrowed from **MCOCA, 1999**.

25. Terrorist Act (S. 113)

An act with intent to threaten the **unity, integrity, sovereignty, security or economic security** of India, or to strike **terror**, using bombs, firearms or other means that cause death, damage to property, disruption of essential services or **counterfeit currency**. It is based on **S. 15 UAPA**. An officer **not below the rank of SP** decides whether to register the case under the BNS or the UAPA.

26. Section 152 – Successor of Sedition

S. 152 punishes whoever, **purposely or knowingly**, by words, signs, electronic communication, **financial means** or otherwise, excites or attempts to excite **secession, armed rebellion or subversive activities**, or **encourages separatist feelings**, or **endangers the sovereignty, unity and integrity** of India. Punishment is up to **life** or up to **7 years** and fine. Unlike S. 124A, it does **not** protect the "Government" from criticism; it protects the **nation**.

27. Snatching (S. 304)

Theft is "**snatching**" if, in order to commit theft, the offender **suddenly or quickly or forcibly seizes or secures or grabs or takes away** movable property from a person or from his possession. It is punishable with up to **3 years** and fine. Earlier, such acts were treated as theft or robbery depending on the use of force.

28. Grievous Hurt (S. 116)

The **eight kinds** are:

1. emasculation;
2. permanent loss of sight of either eye;
3. permanent loss of hearing of either ear;
4. loss of any member or joint;
5. destruction or permanent impairing of any member or joint;
6. permanent disfiguration of the head or face;
7. fracture or dislocation of a bone or tooth;
8. hurt that **endangers life**, or causes **severe bodily pain** or inability to follow ordinary pursuits for **15 days** (reduced from 20 days in the IPC).

29. Acid Attack (S. 124)

S. 124(1): causing **permanent or partial damage, deformity or burns**, or maiming, disfigurement or disability, by throwing or administering **acid** is punishable with a minimum of **10 years** extending to **life**, and fine. The fine must cover the victim's medical expenses and must be **paid to the victim**. **S. 124(2)**: an attempt carries **5–7 years**. See *Laxmi v UOI*.

30. Kidnapping from Lawful Guardianship (S. 137)

Taking or enticing a **child** (under 18, gender-neutral under the BNS; under the IPC, a male under 16 and a female under 18) or a person of **unsound mind** out of the keeping of the **lawful guardian** without the guardian's consent. The child's consent is **immaterial**. *S. Varadarajan (1965)*: no "taking" where the girl, nearly 18, left voluntarily.

31. Trafficking of Persons (S. 143)

Recruiting, transporting, harbouring, transferring or receiving a person by threats, force, coercion, abduction, fraud, abuse of power or inducement, for the purpose of **exploitation**. Exploitation includes physical or sexual exploitation, slavery, servitude, **beggary** and forced removal of organs. The **victim's consent is immaterial**. Punishment ranges from 7 years to life, and is higher for **children**.

32. Unlawful Assembly (S. 189)

An assembly of **five or more** persons with a **common object** of:

1. overawing the Government or a public servant by criminal force;
2. resisting the execution of law;
3. committing mischief or criminal trespass;
4. taking possession of property by criminal force; or
5. compelling a person to do what he is not legally bound to do.

33. Affray (S. 194)

When **two or more persons**, by **fighting in a public place**, **disturb the public peace**. Punishment is up to **1 month**, or a fine up to **₹1,000**, or both. Affray differs from **rioting**: rioting needs an **unlawful assembly** and can occur in a **private place**.

34. Public Nuisance (S. 270)

An act or illegal omission which causes **common injury, danger or annoyance** to the public, or to the people who occupy property in the vicinity. It is not excused on the ground that it causes some convenience. It is punishable with a fine up to **₹1,000**. Examples include loud DJ music at night and blocking roads.

35. Theft (S. 303)

Dishonestly taking **movable property** out of the **possession** of any person **without his consent**, by **moving** that property. Temporary removal is enough (*Pyare Lal Bhargava, 1963*). Punishment is up to **3 years**. For a **second** conviction it is a minimum of **1 year** extending to 5 years. A first-time theft of property worth under **₹5,000**, where the property is **returned**, can be punished with **community service**.

36. Extortion (S. 308)

Intentionally putting a person in fear of any injury and thereby **dishonestly inducing** him to **deliver** any property, valuable security or signed document. **Sextortion** through morphed images is a modern example. Punishment is up to **7 years**.

37. Cheating (S. 318)

Deceiving a person and **fraudulently or dishonestly inducing** him to **deliver property**, or to do or omit something he would not otherwise do, which causes **damage or harm** in body, mind, reputation or property. The intention must exist **at the time of inducement** (*Hridaya Ranjan, 2000*). **Cyber frauds** such as fake KYC calls and "digital arrest" scams are cheating combined with **IT Act** offences.

END OF FREE SAMPLE

Get the complete Semester II book

Osmania University · LL.B. (3-YDC) · 6 papers · 511 pages

PAPERS IN THE FULL BOOK

Paper I – Law of Contract-II	80 pages
Paper II – Family Law-II (Muslim Law and Other Personal Laws)	83 pages
Paper III – Constitutional Law-II	72 pages
Paper IV – Law of Crimes (BNS 2023)	106 pages
Paper V – Human Rights Law	79 pages
Paper VI – Law of Consumer Protection	87 pages

WHAT YOU GET

- ◆ The **whole semester in one book** – every paper, every unit
- ◆ **Latest cases** and recent amendments as examples
- ◆ **Short answers, essay guides and solved problems** for every paper
- ◆ **Quick revision tables** for the last day before the exam
- ◆ Clickable **bookmarks and contents**; for LL.B. (**General**) and (**Honours**) students

This sample shows 30 of the 511 pages. Page numbers are the same as in the full book.

Buy and download the full book at

www.saathlegal.com

Saath Legal · Exam-Ready LLB Notes